



File No.: EXP202300567

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On December 4, 2022, a complaint was filed with entry registration number REGAGE22e00055517818 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are the owner of a property whose access is via a path that connects to a public access road, being a path over which there is an easement of passage, with a series of properties belonging to the complained party located along this path, which qualify as servient estates in the sections that coincide with said properties. The complained party has installed surveillance cameras along these sections, with the complainant understanding that this action affects their right of passage along this path and exceeds the capabilities of the complained party, without any signage indicating the area subject to the surveillance system in question. The complainant provides documentation proving ownership of the affected lands, the existence of an easement of passage over said lands, and images of the location of the cameras.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party on January 18, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), is acknowledged as received in due time and form in the acknowledgment of receipt that is part of the file.

THIRD: On February 17, 2023, a written response was received from the complained party regarding the "facts" subject to forwarding by this Agency, stating the following:

"The surveillance system is not capturing disproportionate images; they are proportionate as they are confined to the private sphere. It is installed in a private space, at the accesses or entrances, façade, and at C/ Jorge Juan, 6."

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Private space/private property, and the few images of public space, are essential for the intended surveillance purpose (vital interest of the affected party or another person, specifically, to ensure the life, safety, and physical integrity of myself and my family (deterrent measure)).

Although at the time of the restoration of the Rural House, the pre-installation of the surveillance system was carried out, there has been no perceived need to install the cameras until recently. This is due, among other reasons, to the following: Theft of fruits (those existing on the farms: avocados, olives, etc.). Various damages: burning with some product of several Canary Island palms and date palms located on the property, uprooting of plants (ornamental and fruit-bearing), cutting and theft of chains and locks placed in the old parking area next to the rural house, garbage dumping, etc.

Complaints were filed regarding some of these actions at the time.

That Ms. B.B.B. (claimant), as stated in the communication received (which has not been provided to me and, therefore, I cannot fully assess), makes a series of assertions that I do not share as they are untrue. Among them: She has been using the access servitude for no more than 20 years, and the use, punctual and occasional, was permitted by me out of good neighborliness. And she intends this to be a right. The times I have opposed her passage through my access, indicating that her plot has its

own access, I have been threatened, and subsequently, there have been damages, etc. This can be observed in the complaints I provide. It should be added that previously on the plot (...) there was no dwelling, its use was agricultural, and now, upon beginning to live there, the use of my access is intended to be excessive.

Therefore, access to THE PLOT (...) AND OTHERS was via the cattle shed (next to a well that existed and where irrigation also passed, over time a large amount of debris accumulated), continuing south of plot 695, through plot 147 (its layout has been modified several times), descending by an old building in ruins (...) and exiting next to the rural house. This access has been closed by the owners of plot (...), now intending that passage be through my property. The irrigation for the two farms of plot 145 was through the current access to the rural house.

To the west (occident) of plot 695, no servitude is established. As can be seen in the deed provided, it borders the current plot 125 (of Mr. C.C.C., where part of the cattle shed is located. Before it was owned by Mr. D.D.D. and the State Heritage awarded it to the current owner). Therefore, as demonstrated in the title of ownership (and also in the cadastral records), since plot 695 borders the west with plot 125, the current access to the rural house is entirely within my property.

Consequently, the claimed continuity of the servitude referred to by the claimant is not supported by the titles of my property. It is also not public (as certified in the attached document from the ***LOCALITY Town Hall), being for exclusive (private) use for my property.

That, in case it is of interest, these events have occurred following threats received from a neighboring party, Mr. E.E.E. (the owner of plot (...), husband of the aforementioned F.F.F. and father of the also mentioned B.B.B. and C/ Jorge Juan, 6

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G.G.G.). This was reported to the Civil Guard of ***LOCALITY.2 through a complaint filed on January 23, 2021. On May 11, 2021, the COURT OF INSTRUCTION No. X (FORMER MIXED No. X) ISSUED A CONVICTING SENTENCE (Sentence ***NUMBER.1) convicting the accused, Mr. E.E.E., as criminally responsible for a Minor Offense of threats. Given the area where the rural house is located, the damages that have been occurring, the threats received, the coercions, etc., have caused enormous fear towards myself, my family, and my properties. The image of the rural house has been harmed. The sense of security of those who visit and stay there cannot be the same as if no damage were observed. My family (wife and children) also feels fear and apprehension. I must add my fear of traps, provocations, etc. All of this has recently forced me to install cameras to be able to demonstrate the authors of the damages and as a deterrent measure. If the AEPD were to make any decision contrary to the installation, it would cause me great fear, insecurity, and would also affect the image of the rural house and the sense of security of those residing in it.”

FOURTH: On March 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was accepted for processing.

LEGAL GROUNDS

I

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In this case, the complaint dated 04/12/22 is analyzed, through which the following is conveyed: “a set of surveillance cameras (at least 6 units) has been installed in several areas around the

servitude, focusing on it and on outdoor areas, intimidating and violating current regulations (...)”—folio No. 2 point 7 Complaint document—.

The facts focus on the data protection framework regarding the alleged infringement of third-party rights with the installed cameras through the “processing of the same” outside the cases permitted by current regulations.

Article 5.1 c) GDPR provides as follows: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

The party being complained against, in exercising its right to defense in the context of this procedure, responds to this agency in a document dated 17/02/23 denying the illegality of the system, arguing that it has an informative sign indicating it is a , as well as that the images obtained are of a private nature.

“It is installed in a private space, at the accesses or entrances, facade, and in private property/land, and the few images of public space are essential for the purpose of surveillance intended (vital interest of the affected person or another person, specifically, to ensure the life, safety, and physical integrity of myself and my family (deterrent measure)”—folio No. 2 Defense document dated 17/02/23—.

It also states “conflicts” of various kinds with the complainant that have resulted, according to its statements, in “damages” and “threats” towards its person, providing copies of Complaints filed with the State Security Forces and Corps.

After analyzing the arguments of both parties, this agency finds that the main conflict centers on the passage through the servitude between the parcels of their property, which is the real issue between them.

Both present extensive documentation regarding the purported nature of the path as a servitude (private or public nature), when the reality of the facts is that such issues exceed the jurisdictional framework of the Spanish Agency for Data Protection.

The Judgment of the National Court of April 1, 2011, appeal 2223/2010, in its Legal Foundation IV, last paragraph states the following:

“The importance and significance of data protection regulations and the relevance of the constitutional rights at stake advise that they should not be put at the service of personal disputes that must be resolved in different areas that should only be relevant in the domestic sphere and not in a jurisdictional context. The seriousness involved in exercising the sanctioning power advises that the corresponding administrative and jurisdictional mechanisms should only be activated when it is assumed that a true violation of the fundamental right to data protection has occurred. Such a circumstance does not occur in the present case.”

III

Regarding the presence of the cameras without delving into “complex” issues from a civil law perspective and given the “special” nature of the Canary servitude as a customary figure, the following should be noted.

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It is important to remember that a is a type of path or portion of traversable land used by neighboring property owners, which runs through the privately owned lands of each of them, but it is not exclusively owned by any of the owners of the neighboring estates who hold the right of passage, with the purpose of accessing a public road.

It is not a public road, nor a private road for public use, as the rights of passage are held solely, and in solidarity, by each of the holders of the Servitude.

The Civil Code does not recognize the "Servitude" as an institution, having received a nature letter in the jurisprudence of the Supreme Court as a customary institution applicable in the Canary Islands [STS 10/07/1985 (RJ 1985, 3967)].

The presence of image capture devices (personal data) must comply with the current regulations in force on the matter, seeking a balance between the rights that may be affected, but not making

disproportionate use of them or with the purpose of continuing the neighborhood dispute, which is what underlies the present claim.

We are not dealing with a public road; rather, the use of it is limited to the usufructuaries thereof, therefore, the impact from the perspective of data protection is lesser, limited to the few owners who make use of it.

Among the parties due to the conflict regarding the use and nature of the road, various events have occurred that have led to multiple complaints and the judicialization of the conflict between them (e.g., property damage crimes, threats, etc.).

The video surveillance cameras have the essential purpose of protecting property, facilities, and individuals, serving as evidence obtained through recording to substantiate behaviors contrary to the legal order.

The parties do not raise violations within the framework of data protection, as the data of both are widely known due to the various lawsuits between them, but rather civil issues regarding the use of the road in question and its ownership, which they are eager to demonstrate to this Agency through the corresponding property deeds and their analysis, if applicable, by this body.

Article 22 of the LOPDGDD (LO 3/2018, December 5) states:

1.

Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

2.

Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section.

The responding party has argued various behaviors of the claiming party that justify the presence of cameras focused on part of the servitude area, as necessary to prevent behaviors, including criminal ones.

Furthermore, the responding party certifies having informative sign(s) in the access area to their properties indicating that it is located at C/ Jorge Juan, 6

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, without any record that the claimant has exercised the right of access to them in a legal manner.

No complaints have been received from other neighbors in the area who might feel intimidated by the presence of the cameras, nor has it been demonstrated that there has been treatment outside the cases permitted by the current regulations, much less involving minors as stated in the complaint.

According to the above, after analyzing the case as a whole, the presence of the video surveillance cameras is permitted, adhering to the criteria of this agency, limiting as much as possible to the private area of the properties owned by the claimant, reminding that the images obtained must be made available to the competent authorities in case of capturing the described behaviors, while avoiding at all times, as a recommendation, to conduct surveillance of the access area (entrances/exits) of the claimant's property, if applicable.

All of this is without prejudice to the fact that the matter may be subject to analysis in the appropriate civil judicial instances, whose criteria do not have to coincide with those argued by this Agency.

IV

Therefore, based on what is indicated in the previous paragraphs, no evidence has been found that proves the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

The parties are recommended to redirect their relationships to the minimum rules of neighborly coexistence, making peaceful use of the land subject to servitude for their corresponding parcels or, if applicable, to resolve their disputes in the various judicial instances, as these are the competent authorities in the matter they present.

In accordance with the above, by the Director of the Spanish Agency for Data Protection, IT IS

AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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28001 – Madrid
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